

Chandra Sein v. Pashchimanchal Vidyut Vitran Nigam Limited

High Court of Judicature at Allahabad · Division Bench · 10 November 2016 · WRIT - C No. 53761 of 2016 · **Writ disposed of; licensee to process connection application within one month.**

HEADNOTE

A writ pressing only for disposal of an application for a fresh electricity connection was disposed of by directing the distribution licensee to scrutinize the application and, subject to completion of required formalities, dispose of it in accordance with the U.P. Electricity Supply Code, 2005, preferably within one month. The Court did not grant or refuse the connection on merits.

FACTUAL SUMMARY

Chandra Sein filed a writ petition in the Allahabad High Court against Pashchimanchal Vidyut Vitran Nigam Limited and another, seeking a direction for disposal of an application he stated he had already made for issuance of a fresh electricity connection. At the hearing, Sri Rizwan Ahmad Qureshi appeared for him and standing counsel for the State respondents. The only prayer pressed was that the pending connection application be disposed of; no other relief was urged.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::new-connection

Processing of application for fresh electricity connection

HOLDING

An application for grant of an electricity connection is to be processed under the U.P. Electricity Supply Code, 2005. Where the writ seeks only disposal of such an application, the Court may direct the licensee to scrutinize it and, subject to completion of required formalities, dispose of it expeditiously and preferably within one month; the connection is not granted on the writ. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ pressing only for disposal of an application for a fresh electricity connection was disposed of by directing the distribution licensee to scrutinize the application and, subject to completion of required formalities, dispose of it in accordance with the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED ON MERITS TO A FRESH ELECTRICITY CONNECTION

Left to the licensee to scrutinize and dispose of the application subject to completion of formalities. ¶ 1